

BEFORE THE BOARD OF BEHAVIORAL SCIENCE
OF THE STATE OF IOWA

IN THE MATTER OF:

CASE NO. 15-0030

DIA NO. 15BS003

AMANDA BRUNE

License No. 001402

Respondent

FINDINGS OF FACT,
CONCLUSIONS OF LAW,
DECISION AND ORDER

On August 13, 2015, the Iowa Board of Behavioral Science (Board) filed a Notice of Hearing and Statement of Charges against Amanda Brune, MHC (Respondent). Respondent was charged with fraud in procuring a license by making false representations of material fact and by concealment of that which should have been disclosed when making application for a license in this state, pursuant to Iowa Code section 147.55(1) and 645 IAC 33.2(2)"a."

The hearing was held on November 5, 2015 at the Lucas State Office Building, fifth floor conference room, Des Moines, Iowa. The state was represented by Assistant Attorney General Laura Steffensmeier. Respondent Amanda Brune elected to appear for the hearing by telephone, and she was represented by attorney Dustin Baker. The following Board members were present for the hearing: Erik Oostenink, MHC, Chairperson; Amy Crow Sunleaf, MHC; Sarah Thomas, MFT; Jeff Kerber, MFT; and Sherrill Whisenand, public member. Administrative Law Judge Margaret LaMarche assisted the Board in conducting the hearing. The hearing was closed to the public at Respondent's request, pursuant to Iowa Code section 272C.6(1)(2015), and was recorded by a certified court reporter. After hearing all the evidence and examining the exhibits, the Board convened in closed session, pursuant to Iowa Code section 21.5(1)(f)(2015), to deliberate its decision. The administrative law judge was instructed to prepare the Board's written decision, in accordance with its deliberations.

THE RECORD

The record includes the testimony of Board Executive Judy Manning and State Exhibits 1-16 (See Exhibit Index for description).

FINDINGS OF FACT

The 2005 Revocation of Respondent's Certification as a Substance Abuse Counselor

Respondent Amanda Brune (formerly known as Amanda Zwack) was previously issued certification as a substance abuse counselor by the Iowa Board of Substance Abuse Certification (IBSAC). On March 31, 2005, the IBSAC provided a written notice to Respondent, which informed her that the IBSAC's Ethics and Appeals Committee would be conducting a hearing on April 26, 2005 regarding its investigation of her possible violation(s) of the Code of Ethics. A copy of the March 28, 2005 Ethics Investigation Report was enclosed with this notice. The Investigation Report described the nature of the complaint against Respondent, which alleged that she was having close personal relationships with clients, including sexual intercourse with one male client, while she worked for New Beginnings at Maquoketa and Clinton, Iowa as a substance abuse counselor. The Investigation Report included General Findings, a Statement of the Possible Ethical Violations, and the Investigation Findings Supporting the Complaint. Respondent was also provided copies of the IBSAC Investigation Procedures and Hearing Procedures. (State Exhibits 2-4; 10)

Respondent emailed the IBSAC's Executive Director in response to the notice of hearing. Respondent asked for the hearing to be rescheduled because she was going to be in court as a witness on April 26, 2005. Respondent also challenged the fairness of the IBSAC's hearing process. The IBSAC then agreed to reschedule Respondent's hearing for May 20, 2005 at 10:00 a.m. Respondent was informed that whether or not she had violated the IBSAC's Code of Ethics would be for the hearing panel to decide. Respondent was further informed that the hearing panel would be provided a copy of her letter and that she would be allowed to bring witnesses and written material to the hearing. (State Exhibits 5, 6)

On April 27, 2005, the IBSAC received a letter from Respondent stating that she could not attend the May 20, 2005 ethics hearing because she would once again be in court all day. Respondent further stated that she understood that the hearing could not be rescheduled again. Respondent addressed some discrepancies that she had noted in the Investigator's Report and denied knowing the 4 individuals that she allegedly had sexual relations with. Respondent further stated that she let her certification expire because she does not utilize it in her current position. (State Exhibit 7)

Respondent failed to appear for her ethics hearing before the IBSAC Hearing Panel on May 20, 2005. On May 20, 2005, the Hearing Panel heard evidence from the investigator

and issued an Order that permanently revoked Respondent's certification for violations of Principle II (Dual Relationships) and Principal IV (Professional Competence and Integrity). (State Exhibits 8, 9)

Respondent's Application for Licensure as a Mental Health Counselor and Licensure History

On April 4, 2011, Respondent filed her initial Application for Mental Health Counselor Licensure with the Iowa Board of Behavioral Science (Board). Respondent indicated on her application that she had earned a master's degree in 2001 from an accredited Mental Health Counseling program. Respondent further indicated that she had completed the required supervised clinical experience in 2001. (State Exhibit 10)

Respondent answered "no" to the following questions on the Board's licensing application:

12. Been investigated by a licensing, registration, or certification authority or organization; or had a licensing, registration, or certification authority or organization institute disciplinary action against you related to your professional practice? (If the investigation was instituted by this licensing board you may answer "NO" to the question.)

13. Been disciplined or sanctioned by any licensing, registration, or certification authority or organization related to your professional practice? (If this licensing board took the disciplinary action you may answer "NO" to this question.)

Respondent signed the application on March 31, 2011. Respondent's signature appears below the following statement:

I certify that I have carefully read the questions on this application and have answered them completely and truthfully. I declare under penalty of perjury that my answers, and all other statements or information submitted by me in this application process, are true and correct. If it is determined at any time that I have provided misleading or false information on or in support of this application, I understand that my application may be denied or that I may be subject to disciplinary action and criminal prosecution if I am already licensed.

(State Exhibit 10; Manning testimony)

Following review of the information provided in the application, the Board issued Respondent License No. 001402 on January 10, 2012. Respondent subsequently renewed her mental health counselor license on October 1, 2012 and on October 1, 2014. For both renewals, Respondent answered “no” to the two questions that asked if she had ever been investigated or disciplined by any licensing, registration, or certification authority or organization related to your professional practice? (Manning testimony; State Exhibits 10-12)

On October 8, 2014, Respondent and the Board entered into a Settlement Agreement and Final Order to resolve allegations that Respondent had been convicted of a crime related to her profession or occupation. In January 2014, Respondent had pled guilty to the crime of Tampering with Records, an Aggravated Misdemeanor. The conviction stemmed from allegations that Respondent had billed Medicaid for services that she provided to a family member during the same periods when she was seeing clients for her employer. In resolution of these charges, Respondent and the Board agreed that her license as a mental health counselor would be placed on probation for a period of two (2) years, subject to a number of terms and conditions. Respondent is currently on probation with the Board. (State Exhibit 15; Manning testimony)

Board's Receipt of Complaint and Subsequent Investigation

In early 2015, the Board received an anonymous call asking why the Board had licensed Respondent as a mental health counselor when her certification had been revoked by the IBSAC. The Board's Executive Director, Judy Manning, reviewed the IBSAC website and was able to confirm that Respondent's certification as a substance abuse counselor was permanently revoked in May 2005. (Manning testimony; State Exhibit 9)

On February 2, 2015, Judy Manning sent a letter asking Respondent to submit a narrative to the Board to explain her failure to inform the Board of the 2005 permanent revocation on her initial licensure application. Respondent was also asked to address the circumstances that resulted in the revocation of her addictions counselor certification. (State Exhibit 13; Manning testimony)

In her email response to Ms. Manning, Respondent questioned why the Board was just now asking her about the revocation, which occurred ten years ago, but did not ask her about it when she was licensed more than three years ago. Respondent asserted that she answered the question about prior investigations, discipline, and sanctions as directed on the licensure application. Respondent essentially maintains that she was

permitted to answer these questions “no” because the Iowa Department of Public Health provided funds to her former employer and therefore should have known about the permanent revocation of her certification. Respondent further indicated that she was unable to address the circumstances that resulted in the revocation of her addictions counselor certification because she was never told of any specific allegation. (State Exhibit 14; Manning testimony)

CONCLUSIONS OF LAW

The Board is statutorily authorized to revoke, suspend, or otherwise discipline a licensee for fraud in procuring a license.¹ Pursuant to Board rule, “fraud in procuring a license” includes, but is not limited to, an intentional perversion of the truth in making application for a license to practice in this state, which includes false representations of a material fact, whether by word or by conduct, by false or misleading allegations, or by concealment of that which should have been disclosed when making application for a license in this state.²

The preponderance of the evidence established that Respondent violated Iowa Code section 147.55(1) and 645 IAC 33.2(2)“a” when she provided false answers to questions 12 and 13 on her initial application for licensure and on her renewal applications. The questions clearly and unequivocally required Respondent to report any past investigations, discipline, or sanctions by a “licensing, registration, or certification authority or organization” that was related to her professional practice. The instructions clearly state that the applicant may answer “no” if the investigation was instituted or disciplinary action was taken by “**this licensing board.**” (emphasis supplied). Respondent’s certification as a substance abuse counselor had been permanently revoked by the ISBAC in May 2005. Clearly, the ISBAC is not the same entity as the Iowa Board of Behavioral Science. This Board does not issue substance abuse counselor certifications, and it did not investigate Respondent in 2005 or permanently revoke Respondent’s certification as substance abuse counselor.

The only explanation that Respondent has provided to the Board was submitted in her February 15, 2015 email to Judy Manning. Respondent elected not to testify at hearing. Respondent’s written explanation for why she answered “no” to questions 12 and 13 lacked credibility and was far-fetched. There is nothing on the Board’s application form that would lead any applicant to believe that a prior investigation or disciplinary sanction related to their professional practice did not have to be reported if the

¹ Iowa Code section 147.55(1)(2015).

² 645 IAC 33.2(2)“a.”

applicant's employer received funds from the Iowa Department of Public Health. The Board firmly believes that Respondent fully understood the questions on the application but intentionally chose to conceal the permanent revocation of her substance abuse counselor certification because she knew that the permanent revocation could be a roadblock to her licensure as a mental health counselor.

Respondent's further claim that the ISBAC never informed her of any specific allegation against her was also inaccurate and false. The ISBAC provided Respondent with the Investigation Report, which included a description of the nature of the complaint against her and the investigative findings. Respondent was on notice concerning the very serious nature of the allegations and yet she chose not to appear for her hearing before the ISBAC's hearing panel.

If the Board had known that Respondent's substance abuse counselor certification had been permanently revoked for serious ethical violations involving dual relationships with clients, it is very unlikely that the Board would have granted Respondent licensure as a mental health counselor. The prior permanent revocation of Respondent's certification would have raised significant doubts about her ability to practice as a mental health counselor in a competent and ethical manner.

Moreover, the Board must be able to rely on applicants and licensees to be honest and forthcoming when they are asked for information. Respondent's total lack of remorse and her failure to accept any responsibility for the false answers that she provided on her licensing application raises further concerns about her trustworthiness and her ability practice safely and competently as a mental health counselor. Rather than accept responsibility for her actions, Respondent chose to go on the offensive and to criticize the Board for granting her a license in the first place and for taking this disciplinary action more than three years after her license was granted. Respondent chooses to ignore the fact that due to her false representations on her application, the Board did not know about the revocation of her certification until earlier this year.

DECISION AND ORDER

IT IS THEREFORE ORDERED that license number 001402 issued to Respondent Amanda Brune is hereby REVOKED, effective immediately upon service of this Decision and Order.

IT IS FURTHER ORDERED that Respondent may not file an application for reinstatement until a minimum period of three (3) years has elapsed from the date of

this Decision and Order. Any application for reinstatement will be subject to the provisions of 645 IAC 11.31. The burden of proof will be on Respondent to establish that the reason for the revocation of her license no longer exists and that it is in the public interest for her license to be reinstated. At this time, the Board is unable to articulate any conditions under which it would consider reinstating Respondent's license.

IT IS FURTHER ORDERED, pursuant to Iowa Code section 272C.6, that Respondent Amanda Brune shall pay \$75.00 for fees associated with the disciplinary hearing and \$55.00 for the court reporter fees. The total fees of \$130.00 shall be paid within thirty (30) days of receipt of this decision.

Dated this 4th day of December, 2015.

Erik Oostenink, MHC

Erik Oostenink, MHC, Chairperson
Iowa Board of Behavioral Science

Pursuant to Iowa Code section 17A.19(2015) and 645 IAC 11.29, any appeal to the district court from a decision in a contested case shall be taken within 30 days from the issuance of the decision by the board. The appealing party shall pay the full costs for the transcript of the hearing. 645 IAC 11.23.

cc: Laura Steffensmeier, Assistant Attorney General